

MOSELLE v SADEGI

20CV44668

PLAINTIFF'S MOTION TO COMPEL DISCOVERY

This civil action stems from a dispute over a cannabis business between Plaintiff Parker Moselle ("Plaintiff") and Defendant James Sadegi ("Defendant").

Before the Court is Plaintiff's motion to compel responses to discovery. Plaintiff should have filed a separate motion for each type of discovery and failed to do so here. The Court will consider the substantive merits of the motion, but Plaintiff should be aware of this requirement for any future filings.

Defendant has not filed an opposition.

I. Procedural Background

On September 13, 2024, Plaintiff served discovery via email upon Defendant's counsel. Responses were due on October 15, 2024. No responses were received. Plaintiff's counsel followed up on the requests on October 25, 2024 and on October 28, 2024, Defendant's counsel stated he was still working on the responses. After no responses were provided, Plaintiff's counsel followed up on November 6 and 12, 2024. As of the filing of the motion to compel, the Defendant has not provided any response.

II. Legal Standard and Analysis

Pursuant to Code Civ. Proc. section 2033.280:

(a) The party to whom the requests for admission are directed waives any objection to the requests, including one based on privilege or on the protection for work product under Chapter 4 (commencing with Section 2018.010). The court, on motion, may relieve that party from this waiver on its determination that both of the following conditions are satisfied:

- 1) The party has subsequently served a response that is in substantial compliance with Sections 2033.210, 2033.220, and 2033.230.
- 2) The party's failure to serve a timely response was the result of mistake, inadvertence, or excusable neglect.

Further, the Court shall deem the facts admitted as true, unless it finds that the party to whom the RFAs were directed, "has served, before the hearing on the motion, a proposed response to the requests for admission that is in substantial compliance with Section 2033.220." (Code Civ. Proc. § 2033.280(c).)

Pursuant to Cal. Code Civ. Proc. § 2030.290, if a party to whom interrogatories are directed fails to serve a timely response then:

(a) The party to whom the interrogatories are directed waives any right to exercise the option to produce writings under Section 2030.230, as well as any objection to the interrogatories, including one based on privilege or on the protection for work product under Chapter 4 (commencing with Section 2018.010). The court, on motion, may relieve that party from this waiver on its determination that both of the following conditions are satisfied:

- (1) The party has subsequently served a response that is in substantial compliance with Sections 2030.210, 2030.220, 2030.230, and 2030.240.
- (2) The party's failure to serve a timely response was the result of mistake, inadvertence, or excusable neglect.

Pursuant to Code Civ. Proc. section 2031.300, if a party to whom requests for production of documents fails to serve a timely response then:

(a) The party to whom the demand for inspection, copying, testing, or sampling is directed waives any objection to the demand, including one based on privilege or on the protection for work product under Chapter 4 (commencing with Section 2018.010). The court, on motion, may relieve that party from this waiver on its determination that both of the following conditions are satisfied:

- (1) The party has subsequently served a response that is in substantial compliance with Sections 2031.210, 2031.220, 2031.230, 2031.240 and 2031.280.

(2) The party's failure to serve a timely response was the result of mistake, inadvertence, or excusable neglect.

A party moving to compel initial responses under these sections is not required to meet and confer. (*Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal.App.4th 390, 411.)

Defendant has failed to respond to any of Plaintiff's discovery requests. Defendant has also failed to file an opposition. Accordingly, Plaintiff's motion is well taken and **GRANTED**.

Defendant is ordered to provide verified responses, without objection, to all of Plaintiff's discovery requests, including Form Interrogatories, Special Interrogatories, Requests for Production of Documents and Request for Admissions within ten (10) days of this order.

III. Sanctions

Sanctions for failure to timely respond to RFAs are mandatory. (Code Civ. Proc. § 2033.280(c).) Defendant has failed to provide the actual documents requested and accordingly, sanctions are warranted.

Plaintiff requests sanctions in the amount of \$712.50 plus \$60 in costs if there is no hearing. If there is a hearing, Plaintiff seeks \$1,350 in fees. The Court finds these requested sanctions amounts are reasonable and appropriate and **awards monetary sanctions owed by defendant in the amount of \$772.50** to be paid within ten (10) days of this Order. If a hearing is requested by defendant and found to be unwarranted by the Court, the intent is to award a total of \$1,410.

The Clerk shall provide notice of this Ruling to the parties forthwith. Plaintiff to submit a formal order pursuant to Rule of Court 3.1312 in conformity with this ruling.

KRPAN, et al v SLIGHT, et al

20CV44854

DEFENDANT JORDAN'S MOTION FOR SUMMARY JUDGMENT

Before the Court is a motion for summary judgment filed by Defendant A L Guy Jordan, Co. ("Defendant") against Plaintiffs Christopher Krpan and Julie Krpan ("Plaintiffs") on the sole cause of action against it for negligence - construction defect.

I. Background

On or about May 22, 2018, Plaintiffs purchased the real property located at 321 Fen Way, Murphys, CA 92547 ("Property") as a new home built by Defendant Yosemite Construction, LLC ("Yosemite") for \$1,325,000.00. (UMF 2.) Yosemite hired Defendant to perform certain work on the Property in both 2015 and 2017, before Plaintiffs owned the Property. (UMF 5, 6.)

It is undisputed that Defendant "provided services grading, movement of dirt, movement of boulders, preparation for driveway and access roads, preparation for foundation for pool and other structures." (UMF 8.) It is also undisputed that Defendant did not perform any work within 50 feet of Plaintiff's house or 30 feet of the swimming pool. (UMF 7.) Defendant did not do any work on the front or back porch of the house, or within 50 feet of the house. (UMF 12.) Further, Defendant did not move any boulders or large rocks in the vicinity of any "posts." (UMF 13.) Defendant did not do any work related to the pool pad, or the structure of any building on Plaintiffs' property. (UMF 14.) For all work done on the Property, Defendant was paid a total of \$7,838.00. (UMF 19.)

Sometime after the Property was completed and Plaintiffs were residing therein, they began to discover multiple construction defects. Most of the defects were related to the interior and exterior of the residential dwelling ("house.") Plaintiffs also allege that the pool was unlevel which caused a "bond beam to crack" (FAC ¶ 127.)

In responses to Special Interrogatories, Plaintiffs state that Defendant is liable because "soil preparation was not done properly as recommended by engineer reports, boulders and soil were moved without regard to existing work, the location of pipes or soil and land conditions requiring repair work." (UMF 9.) The damages allegedly caused by this purported negligence was the cost of replacing existing posts with new posts on the front and back porches of the house. (UMF 10, 11.)